

IN THE SUPREME COURT OF INDIA
CIVIL APPELLATE JURISDICTION

CIVIL APPEAL NO. 4821 OF 2024

(Arising out of SLP (Civil) No. 11203 of 2023)

DECIDED ON: 15 MARCH 2024

BENCH:

HON'BLE DR. JUSTICE D.Y. CHANDRACHUD, CJI

HON'BLE MR. JUSTICE J.B. PARDIWALA, J.

HON'BLE MR. JUSTICE MANOJ MISRA, J.

BETWEEN:

PRIYA SHARMA & ORS.

... Appellants

VERSUS

STATE OF MAHARASHTRA & ANR.

... Respondents

SUBJECT: Constitutional Law — Right to Livelihood — Article 21

HEADNOTE:

The right to livelihood is an integral component of the right to life under Article 21 of the Constitution of India. Arbitrary deprivation of a person's means of livelihood by State action, without following the principles of natural justice, constitutes a violation of Article 21. The State must demonstrate a compelling public interest and follow due process before taking any action that deprives a citizen of their primary source of income.

JUDGMENT

D.Y. Chandrachud, CJI:

1. This appeal arises from a judgment of the High Court of Judicature at Bombay dated 14 September 2023, whereby the Division Bench dismissed the writ petition filed by the appellants challenging the order of the Municipal Corporation of Greater Mumbai cancelling their hawking licences without notice.

2. The appellants are street vendors who have been operating in the Dharavi locality of Mumbai for over fifteen years. By an order dated 3 May 2023, the Municipal Corporation cancelled their licences citing encroachment on public space, without issuing any show-cause notice or affording an opportunity of hearing.

3. The core question before this Court is whether the cancellation of hawking licences without affording an opportunity of hearing violates Article 21 of the Constitution of India.

RATIO DECIDENDI:

4. The right to livelihood, as an essential facet of the right to life under Article 21, cannot be taken away except by a procedure established by law that is just, fair and reasonable. This Court in *Olga Tellis v. Bombay Municipal Corporation* (1985) 3 SCC 545 held that the right to livelihood is borne out of the right to life, since no person can live without the means of living.

5. The action of the Municipal Corporation in cancelling the hawking licences of the appellants without issuing a show-cause notice and without providing them an opportunity to be heard is wholly arbitrary and in flagrant violation of the principles of natural justice. The cancellation order is accordingly set aside.

6. We direct the Municipal Corporation of Greater Mumbai to restore the hawking licences of the appellants within four weeks from the date of this judgment and to conduct fresh proceedings in accordance with law, providing the appellants a reasonable opportunity of hearing before any adverse order is passed.

CITED DECISIONS:

1. *Olga Tellis v. Bombay Municipal Corporation* (1985) 3 SCC 545

2. *Maneka Gandhi v. Union of India* (1978) 1 SCC 248

3. *Board of Trustees of the Port of Bombay v. Dilipkumar Raghavendranath Nadkarni* (1983) 1 SCC 124

Appeal allowed. No order as to costs.

(D.Y. CHANDRACHUD)
CHIEF JUSTICE OF INDIA

(J.B. PARDIWALA)
JUDGE

(MANOJ MISRA)
JUDGE

New Delhi
15 March 2024